

TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at [Court Reporter Services | Superior Court of California | County of Orange](#).

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange](#) prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS**5/28/2026****02:00 PM**

100	Lucatero Torres vs. South Coast Circuits, Inc. 2022- 01244244	Final Accounting The settlement administrator, Phoenix Settlement Administrators, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
101	Ramos vs. Cathyjon Enterprises, Inc. 2023- 01338748	Motion for Final Approval of PAGA Settlement At the last hearing on this matter on 2/26/2026, the Court identified various issues that Plaintiff's counsel must address before Plaintiff Alver De Jesus Ramos's Motion for Approval of PAGA Settlement may be granted. (ROA #68.) The Court ordered that "Plaintiff's counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date." (<i>Id.</i>) Although Plaintiff's counsel filed supplemental materials on 5/5/2026, those supplemental materials were incomplete and did not fully address the issues previously raised by the Court. In particular: 1. The Court's 2/26/2026 minute order stated: "The moving papers fail to provide the Aggrieved Employees' estimated individual recovery under the proposed settlement, including the estimated average, low, and high payments." (ROA #68.) In response, counsel's 5/5/2026 supplemental brief simply stated that "Defendant is currently in the process of calculating these amounts and the Parties will provide the information forthwith." (ROA #73 at pp. 3-4.) 2. The Court's 2/26/2026 minute order also stated: "The Settlement Agreement includes an escalator clause. But this is a motion to have the settlement fully approved, and so a specific GSA must be approved upon the granting of this motion. At this point, the parties should know or be able to determine the number of Aggrieved Employees and

		qualifying pay periods based on the PAGA Period.” (ROA #68.) In response, counsel’s 5/5/2026 supplemental brief simply stated that Defendant is currently in the process of determining the final number of Aggrieved Employees and PAGA Pay Periods and the Parties will provide the information forthwith.” (ROA #73 at p. 4.) As of May 27, counsel has not filed any further supplemental papers to provide the relevant information. Accordingly, the Court CONTINUES the hearing on the Motion to June 25 at 2:00 p.m. in Department CX102. The Court also SETS an Order to Show Cause re Monetary Sanctions against Class Counsel on to June 25 at 2:00 p.m. in Department CX102. for counsel’s failure to comply with the Court’s 2/6/2026 order. Any response to the OSC must be filed at least 5 court days prior to the OSC hearing.
102	Mihailovic vs. Between The Sheets, Inc. 2024-01439140	Motion for Preliminary Approval of Class Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Anna Mihailovic’s Motion for Preliminary Approval of Class Action Settlement is GRANTED. This is a putative wage-and-hour class action. On 11/12/2024, Plaintiff Anna Mihailovic, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants Between the Sheets, Inc. and BTS (NB), Inc, alleging various Labor Code wage-and-hour violations. (ROA # 2.) Defendants each answered on 12/18/2024. (ROA #13, 14.) On 11/4/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action Settlement Agreement and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class claims for the non-reversionary gross settlement amount (GSA) of \$192,500. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address a few issues. Counsel has submitted supplemental materials, including an amended version of the settlement agreement (“Amended Settlement Agreement”) and an amended Class Notice. Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within

the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

Within five (5) court days, Class Counsel must provide a further amended Proposed Order. The Court notes that the two versions provided at ROA #62 and 63 both had issues: ROA #62 includes the referenced attachments but has spacing/formatting issues on page 3, while ROA #63 omits the referenced attachments but fixes the spacing/formatting issues. Additionally, both versions still use capitalized terms without defining them directly in the order. Accordingly, counsel must submit a further revised proposed order that (1) includes the referenced attachments, (2) fixes the spacing/formatting issues on page 3, and also (3) explicitly includes a statement in the order that the order incorporates by reference the definitions for capitalized terms in the settlement agreement.

The Motion for Final Approval will be heard on 9/17/2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.

Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists.

Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272, and *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804.

		Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
103	Zetterberg vs. Lyon Management Group, Inc. 2025-01473737	Motion for Preliminary Approval of Class Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a data breach class action settlement with consideration consisting of (1) Two years of credit monitoring and identity theft protection valued at approximately \$648 per enrollee; (2) Up to \$3,000 in Documented Loss reimbursement per claimant; (3) Alternative Cash Payments of \$75 for California residents and \$50 for all others, without documentation; and (4) Business Practice Commitments establishing improved information security measures, paid separately and apart from the claims fund. The maximum cash amount available for claims is \$400,000. The court has the following questions and comments: <u>As to the settlement:</u> 1. Plaintiff has failed to provide any case-specific valuation analysis. Conclusory assertions that the settlement is fair are insufficient for the court to conclude the settlement is fair, adequate, and reasonable, and in the best interests of the class members. For example, plaintiff does not include a discussion of any specific valuation (including any applicable discounting) of the claims alleged. Plaintiff must provide specific information sufficient for the court to evaluate whether the consideration being received for the release of the class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the litigation. The valuation should also include, among other things, the basis for the credit monitoring valuation and a quantified valuation of the "Business Practices Commitments." 2. The request for administration costs must be supported by

		a quote or invoice, and the settlement (§ 56) should specify the not-to-exceed amount. 3. The court prefers a 180-day period for class members to cash their checks. §§ 49, 51. Are there unique circumstances here that warrant a shorter period? 4. The settlement provides for redistribution of funds from uncashed checks “if economically feasible, or, if not feasible, distributed to the Electronic Privacy Information Center.” § 52. Who decides if it is “economically feasible” and what are the factors that will be considered? Additionally, all parties must disclose any prior or existing relationship with the Electronic Privacy Information Center or confirm no such relationships exist. 5. The court will not require class members to release their claims before defendant has fully funded the settlement. See §§ 12 (“Effective Date”), 48 (“Payment”). 6. The “Released Claims” provision in the settlement agreement is overbroad. §§ 27, 68. The release must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. <i>The following language appears particularly untethered to the incident in question: “...Defendant's information security policies and practices, or Defendant's maintenance or storage of Personal Information....”</i> 7. The “Released Parties” provision is overbroad. § 28. It includes unidentified, unrelated and/or ambiguous third parties that should be removed, including “agents, insurers, reinsurers, shareholders, attorneys, advisors, consultants, representatives, partners, joint venturers, independent contractors, wholesalers, resellers, distributors, retailers, vendors and related or affiliated entities of any nature whatsoever, whether direct or indirect, as well as any and all of Defendant's and these entities' respective predecessors, successors, officers, directors, employees, advisors, vendors, stockholders, partners, agents, attorneys, representatives, insurers, reinsurers, subrogees and assigns.” 8. The court will not require class members to “fil[e]written objections with the Court” in addition to mailing or emailing objections to the administrator by the Objection Deadline even if plaintiff had provided such filing instructions, which
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it has not. ¶¶ 19, 21, 58.

9. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. Cal. R. Ct. 3.769(b).
10. In the event the total value of cash claims is less than \$400,000, it appears defendant retains the residual. The settlement provides for no reversion to defendant (¶ 44), but the "residual funds" relate only to uncashed settlement payments issued to Participating Settlement Class Members. ¶¶ 31, 52. Why should the "residual funds" not include any amount in excess of the total cash amount distributed to Participating Settlement Class Members?
11. Plaintiff should state her anticipated total compensation to be received (including for any individual settlement and excluding any enhancement award). If plaintiff entered a separate individual settlement, plaintiff should submit a copy for the court's review.
12. Defendant should advise, in a declaration filed with the court, whether, after making reasonable inquiry, it is aware of any class or other action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case.
13. The "short" notice form must be final prior to final approval and may not be changed prior to mailing. ¶ 54. The following should be deleted from the settlement: "The Settlement Administrator shall have discretion to format the Short Form Notice in a reasonable manner to minimize mailing and administrative costs." Id.

As to the claim form (ROA 74 Ex. C):

14. The claim form should be revised consistent with the above.

As to the "long" notice (ROA 74 Ex. B):

15. The notice should be revised consistent with the above.
16. There appears to be a formatting and/or font issue throughout as the text is distorted.

		17. "Defendants" should be singular. At 2. 18. As above, objections will not require "writing to the court." At 2. It should also state a class member may also appear at the final approval hearing and make any objections. Id. The phrase "may also file a claim" should be changed to "may also submit a claim." Id. 19. The sentence "If you do nothing..." should be revised to "However, if you fail to submit a claim..." At 2. 20. Insert "finally" before "approve" in the second bullet on page 2. 21. In § 4, change "are" to "is" in the first sentence. Change "best" to "fair" in the third sentence. 22. In § 5, change "has defined the Class this way..." to "has preliminarily certified the following Class..." 23. Explain what happens if the total value of claims is under \$400,000. § 7. 24. Section 8 should summarize and describe the release, consistent with the above. 25. Section 12 should state the court has "preliminarily approved" not "appointed." 26. All amounts in section 14 should indicate they are not-to-exceed amounts. This section should also make clear the requested amounts will not be deducted from, but are in addition to, the maximum cash amount provided to pay claims. 27. Section 15 instructs that either the form or a written request may be used. It further instructs that the request be mailed. It then states the request may be "submitted, postmarked, or emailed," but only provides a physical address. Id. These instructions are unclear. The accepted methods of submission must be clearly identified, including any address to which it may be emailed. 28. Section 16 should not reference "A Request for Exclusion / Opt-Out Form..." What are the accepted methods for submitting objections? The instructions indicate only mail. Id. This should also inform class members they may appear at the final approval hearing and make an objection in lieu of or in addition to submitting a written objection. 29. Section 18 must identify the correct address and
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		department number of the court. 30. The sentence "The court will also decide how Class Counsel should be paid, and whether to award a Service Award Payment to the Class Representative" in section 18 should be revised. It should state the court will determine the amounts of the requested disbursements for attorneys' fees and costs, the service award for plaintiff, and the costs of administration. 31. The notice should inform class members how they will be notified when final judgment is entered and that all case documents will be available until at least 180 days after judgment is entered by the court. <u>As to the "short" notice (ROA 74 Ex. A):</u> 32. The short notice should be revised consistent with the above. 33. The section "Who is included in the Settlement?" should be revised. The sentence "The Court has appointed experienced attorneys, called 'Class Counsel,' to represent the Class" Should be revised to state "The Court has preliminarily approved attorneys, called 'Class Counsel,' to represent the Class." 34. The section "What are the Settlement benefits?" should disclose the maximum cash available to pay all claims for losses and alternative cash payments and that unclaimed funds will be redistributed pro rata to participating class members. 35. The "How do I receive a benefit" section is unclear. It should state that in order to receive any benefits, the submission of a claim form is required, it must be obtained from the website, and submitted before the deadline. If the class member cannot obtain it from the website, s/he must call to obtain the necessary paperwork. Additionally, the reference to "a full paper Claim Form" is confusing. The notice packet implies that all documents will be available for download or email transmission in electronic form. If that is correct, clearly state it. 36. The "What if I don't want to participate in the Settlement?" section should remove the sentence "The Settlement Agreement, available online, explains how to exclude yourself or object." This sentence should be replaced with a sentence explaining the settlement website contains forms and instructions to exclude yourself from or
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		object to the settlement. 37. The section “When will the Court approve the Settlement?” should be revised. It should include “up to” with respect to plaintiff’s service award and specify it is for a service award as class representative. Additionally, the not-to-exceed administrative cost (\$14,500) should be included. <u>As to the request for exclusion and objection forms (ROA 74 Exs. F-G):</u> 38. Both forms should provide instructions as to how completed forms may be submitted. <u>As to the proposed order for preliminary approval (ROA 74 Ex. D):</u> 39. The proposed order should be revised consistent with the above. 40. Remove counsel information from the caption page. 41. Provide the document title adjacent to the case caption. 42. The proposed order granting preliminary approval is not a “judgment.” 43. The settlement agreement and any amendments thereto should be identified and attached as exhibits. 44. Paragraph 5 should include the approval of the administration costs. 45. Paragraph 6 is inconsistent with the settlement, which provides for a different administrator. 46. Paragraph 6 should identify the notice and all forms, including the Spanish and any other translations, and documents should be attached as exhibits. 47. Delete paragraphs 9-10. 48. Delete “or its substantial equivalent” and the entire last sentence in paragraph 11. 49. Delete paragraphs 12-13. 50. Delete the second sentence in paragraph 15. 51. Delete paragraph 16 (including the table). 52. Add a paragraph including a proposed date for a final
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	approval hearing, and the following: "A Final Approval hearing shall be held with the Court on _____, 2026, at 2:00 p.m. in Department CX102 of the above-entitled Court to determine: (1) whether the proposed settlement is fair, reasonable and adequate, and should be finally approved by the Court; (2) the amount of attorneys' fees and costs to be awarded to Class Counsel; (3) the amount of any service award to the Class Representative; and (4) the amount to be paid to the Settlement Administrator." 53. Add a paragraph stating: "All papers filed in support of final approval, including supporting time entries and invoices for attorneys' fees and costs, shall be filed at least 16 court days prior to the Final Approval hearing." 54. Add a final paragraph stating: "The court orders the parties and the Settlement Administrator to administer the settlement in accordance with the terms of the Settlement Agreement." <u>As to the proposed order for final approval (ROA 74 Ex. E):</u> 55. This has not and will not be reviewed unless and until the settlement proceeds to the final approval stage. The hearing on plaintiff's motion for preliminary approval of a class action settlement is continued to September 24, 2026, at 2:00 p.m. in Department CX102 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 16 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of all revised documents, including all settlement provisions revised by way of amendment. Plaintiff is ordered to provide notice and to file a proof of service.
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104	Fabian vs. Fruth Custom Plastics, Inc. 2024-01408686	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they fail to adequately address the previously identified. Accordingly, Plaintiff Aidee Fabian’s Motion for Preliminary Approval of Class Action and PAGA Settlement is further CONTINUED to July 23 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 6/21/2024, Plaintiff Aidee Fabian, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Fruth Custom Plastics, Inc. (ROA #2.) Defendant answered on 8/14/2024. (ROA #13.) The operative complaint is the first amended complaint, filed on 11/6/2025 pursuant to a stipulated order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #49.) On 11/13/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Release (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$575,000. The GSA includes \$30,000 allocated for PAGA penalties. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. Counsel has submitted supplemental materials, including an Amendment to Class Action and PAGA Settlement Agreement and Release (“Amendment”) and an amended Class Notice. The Court has identified the following issues with the supplemental materials submitted by Counsel: 1. In the Court’s 3/5/2026 minute order, the Court stated: The effective date of the Class Members’ and PAGA aggrieved employees’ releases is on the Effective Date (i.e., when the Superior Court’s final approval order and judgment becomes final), but Defendant does not have to fund the GSA until after the Effective Date (i.e., within 30 days of the Effective Date). (Settlement, ¶¶ 13, 52-53, 56.) In contrast, the effective date of Plaintiff’s release is “as of the
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date Defendant fully funds this Settlement.” (*Id.* at ¶ 30.) Counsel must either explain why releasing the Class Members and PAGA aggrieved employees’ claims before settlement funds are fully paid is in the best interests of the Class and aggrieved employees, or amend the settlement agreement to release these claims only after Defendant has paid the settlement funds.

Instead of amending the settlement to provide that Class Members’ and PAGA aggrieved employees’ release is “as of the date Defendant fully funds this Settlement,” the parties’ Amendment modified ¶¶ 30 and 48 governing Plaintiff’s Release to say that it is “as of the Effective Date.” Again, Defendant does not have to fund the GSA until after the Effective Date (i.e., within 30 days of the Effective Date) per ¶ 56 of the Settlement Agreement. Yet counsel does not explain why any release occurring before settlement funds are fully paid is in the best interests of the Class, aggrieved employees, or Plaintiff. Alternatively, the parties may amend the settlement agreement to release all claims only after Defendant has paid the settlement funds

2. In the Court’s 3/5/2026 minute order, the Court stated:

The title of the notice is “Class and PAGA *Award* Notice” (emphasis added). The use of the word “Award” at this stage is misleading, as this is merely a notice that the Court has preliminarily approved the settlement, but no “awards” are being made yet.

The amended Class Notice deletes the phrase “and PAGA Award” from the title instead of just deleting the word “Award.” The title should read “Class and PAGA Notice.”

3. In the Court’s 3/5/2026 minute order, the Court stated:

The notice should include the following warning upfront, in bold: “Your legal rights are affected whether you act or not act. Read this Notice carefully. You will be deemed to have carefully read and understood it.”

The amended Class Notice added these sentences but did not bold them.

4. A further amended proposed order should be submitted that (1) includes the ROA number of counsel’s supplemental declaration to which the Amendment is attached and (2)

		proposes a new realistic Final Approval hearing date in light of the further continuance of this preliminary approval motion. Class Counsel must file supplemental papers addressing the Court's concerns no later than (9) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
105	Lemus vs. Tustin Buick GMC, Inc. 2024-01393192	Motion for Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they adequately address the previously identified issues. Plaintiff Felipe Lemus's Motion for Approval of PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of one additional issue identified below. This is a PAGA-only action. On 4/12/2024, Plaintiff Felipe Lemus filed a PAGA complaint against Defendant Tustin Buick GMC, Inc., alleging a single cause of action for PAGA civil penalties. (ROA #2.) Defendant answered on 6/3/2024. (ROA #19.) On 9/3/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court's review the Private Attorney General Act (Labor Code § 2698 <i>et seq.</i>) Settlement Agreement and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$245,000. At the first hearing on the Motion on 1/29/2026, the Court concluded that an attorneys' fee award totaling \$73,500 or 30% of the GSA, constituting a 1.44 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. (ROA #65.) The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage, and deducted from the requested amount \$18.12 for claimed postage. (<i>Id.</i>) The Court continued the Motion and asked Plaintiff's Counsel to address various issues. (<i>Id.</i>)

Counsel has submitted supplemental materials, including an Amended Private Attorneys General Act (Labor Code § 2698 *et seq.*) Settlement Agreement ("Amended Settlement Agreement") and an amended notice/cover letter to aggrieved employees that will accompany the payment to them.

Based on a review of all submissions made in support of the motion, including counsel's submission of Plaintiff's Individual Settlement Agreement for the Court's in camera review, the Court finds the settlement is fair and reasonable.

However, in reviewing the moving papers, it appears that Plaintiff's counsel has not yet attested to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none. **Accordingly, Plaintiff's counsel must submit within five (5) court days a supplemental declaration addressing this issue.**

Upon resolution of this issue to the Court's satisfaction, the Court will grant the Motion and approve the following disbursements and awards from the Gross Settlement Amount:

- Attorneys' fees totaling \$73,500.00 awarded to Plaintiff's Counsel, Gaines Law Corporation;
- Litigation costs totaling \$13,644.00 awarded to Plaintiff's Counsel, Gaines Law Corporation; and
- Settlement administration costs of \$4,000.00 awarded to ILYM Group, Inc.

PAGA penalties in the amount of \$153,856.00 shall be allocated as follows: seventy-five percent (75%), or \$115,392.00, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or \$38,464.00, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement.

The Final Accounting hearing is set for 4/8/2027 at 2:00 p.m. in Department CX102. Plaintiff's Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing.

		Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
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